

NEWSLETTER N. 525 of June 26, 2024

FSE 2.0, Privacy Authority: proceedings initiated against 18 Regions and 2 Autonomous Provinces
Telemarketing, Privacy Authority fines Eni Plenitude over 6 million euros

Facial recognition: Authority fines a dealership

SMEs, with Olivia 15 free courses on GDPR and control tests

FSE 2.0, Privacy Authority: proceedings initiated against 18 Regions and 2 Autonomous Provinces

The serious situation reported to the Prime Minister and the Minister of Health in recent days

It is urgent to intervene to protect the rights of all Italian patients involved in the processing of health data carried out through the Electronic Health Record 2.0.

For this reason, the Privacy Authority has notified 18 Regions and the Autonomous Provinces of Bolzano and Trento of the initiation of corrective and sanctioning proceedings for the numerous violations found in the implementation of the new regulations on FSE 2.0, introduced by the decree of the Ministry of Health of September 7, 2023.

In the days prior, the serious situation and the urgency of corrective interventions had been reported to the Prime Minister and the Minister of Health.

The outcomes of the investigative activity on the FSE, initiated at the end of January, showed that 18 Regions and the two Autonomous Provinces of Trentino Alto Adige - not being in line with what is contained in the decree of September 7, 2023 - have modified, even significantly, the information model prepared by the Ministry, following the opinion of the Authority, which should have been adopted throughout the national territory.

The discrepancies found have made it clear that some rights (e.g., obscuring, delegation, specific consent) and measures (e.g., security measures, differentiated access levels, data quality) introduced by the decree, precisely to protect patients, are not guaranteed uniformly across the country. Or they are exercisable and enforceable only by patients from certain Regions and Autonomous Provinces, with a potential and significant discriminatory effect on patients.

Such heterogeneity also contradicts the spirit of the FSE 2.0 reform aimed at introducing homogeneous measures, guarantees, and responsibilities throughout the national territory, thus risking to compromise the functionality, interoperability, and efficiency of the FSE 2.0 system.

The violations committed by Regions and Autonomous Provinces, with varying levels of severity and responsibility, may result in the application of the sanctions provided for by the European Regulation.

Telemarketing, Privacy Authority fines Eni Plenitude over 6 million euros

Of the 747 contracts signed in a "sample week," 657 came from an unlawful contact

Promotional calls made without the consent of the interested party or directed to numbers registered in the Public Opposition Register and the absence of controls on contracts acquired through unlawful contacts: the Privacy Authority has fined Eni Plenitude 6,419,631 euros.

The measure comes following 108 reports and 7 complaints against the company, which complained about receiving unwanted phone calls.

During the investigation, the Authority also requested from Eni Plenitude the data of the purchase proposals made by the sales network and concluded with the activation of energy services, related to a "sample week": of the 747 contracts signed in the identified period, 657 came from an unlawful contact. Numbers that, if hypothetically projected over a year, would lead to 32,850 supplies activated unlawfully.

In particular, the gaps regarding the control and monitoring of agencies and sub-agencies and the mixing of databases are serious. According to the Authority, to comply with the regulation, it is not enough to remove the individual agent or conduct audit activities in case of anomalies, but measures are needed to prevent contracts signed based on unlawful phone contacts from entering the company systems or to derive economic benefit from unlawful conduct.

In addition to the payment of the fine, the Authority has imposed on Eni Plenitude a ban on any further processing of the data of the complainants and reporters. The company must also inform the 657 unlawfully contacted individuals of the outcomes of the proceedings based on a text to be agreed upon with the Authority, prepare controls to ensure that contracts generated from unlawful contacts do not enter the company assets, and ensure compliance with the principles of processing, with particular

reference to the obligations of updating, deletion, and rectification of personal data relating to customers.

Facial Recognition: Authority Sanctions a Dealership

No to Illegal Attendance Monitoring

A fine of 120,000 euros has been imposed by the Privacy Authority on a dealership for violating the personal data of employees through the use of facial recognition systems for monitoring attendance in the workplace.

The Authority intervened following a complaint from an employee who reported the unlawful processing of personal data through a biometric system installed at the two production units of the company. The complaint also noted the use of management software that required each employee to record the repair interventions carried out on the assigned vehicles, the times and methods of execution of the work, as well as the downtime with specific reasons.

From the inspection activity conducted by the Authority, in collaboration with the Special Privacy and Technological Fraud Unit of the Guardia di Finanza, numerous violations of the European Regulation by the company emerged.

Regarding the processing of biometric data, the Authority reiterated that the use of such data is not permitted because there is no legal provision currently in place that allows for the use of biometric data for attendance monitoring. Therefore, the Authority reminded that even the consent expressed by employees cannot be considered a valid basis for legality, due to the asymmetry between the respective parties in the employment relationship.

The Authority also found that the dealership had been collecting personal data related to the activities of employees for more than six years, using management software to prepare monthly reports to be sent to the parent company, containing aggregated data on the time taken by the workshops for the work performed. All of this was done in the absence of an appropriate legal basis and adequate information, which, in the context of the employment relationship, is an expression of the principle of fairness and transparency. In addition to sanctioning the company, the Authority ordered it to align the data processing carried out through the management software with the provisions of privacy legislation.

SMEs, with Olivia 15 Free Courses on GDPR and Control Tests

The tool will allow data controllers and processors to verify compliance with privacy regulations

Data protection within everyone's reach, through text lessons, video seminars, and questionnaires to verify acquired skills. This is Olivia, the free virtual tool developed as part of the European ARC II project, of which the Privacy Authority is a partner, presented during the recent Privacy Symposium in Venice.

Olivia ("general data protection regulation on Virtual Assistant") has been designed to provide training opportunities for small and medium-sized enterprises and to assist them in their compliance with the European Data Protection Regulation (GDPR). However, it can also serve as a useful knowledge tool for all data controllers and processors in the public sector.

The platform indeed features a series of learning modules, ranging from basic concepts about the GDPR to principles and legal bases for data processing, as well as conditions for the use of cookies or surveillance systems in the workplace. Most importantly, the tool, by processing answers to the questionnaires provided, allows companies to verify compliance with privacy regulations.

Particularly useful in this regard are the documentation templates proposed by Olivia concerning data protection impact assessments (DPIA) and assessments of legitimate interest, which represent the most complex legal basis—especially for an SME—on which to base a processing, as it requires demonstrating the prevalence of the organization's interests over the rights of the data subjects.

Completely free and available in Italian, English, and Croatian, Olivia will be officially released in September. Registered users will find on the platform video recordings of the 10 remote seminars conducted as part of ARC II and all the presentations made by the speakers.

The ARC II project, funded by the European Commission, involves the Croatian Data Protection Authority, the Privacy Authority, and the Universities of Florence, Zagreb, and Brussels (Vrije Universiteit), and aims to simplify compliance with the Regulation for SMEs, reduce compliance burdens, and demonstrate how compliance with data protection regulations can enhance business activities and build trust relationships with users and customers.

THE ACTIVITIES OF THE AUTHORITY - FOR THOSE WHO

WANT TO KNOW MORE

The most important interventions and measures recently adopted by the Authority

Covid: Privacy Authority opens investigation on prohibited internship in ASL Puglia – Press Release of June 12, 2024

Scientific Research: FAQs from the Privacy Authority for IRCCS – June 12, 2024

Guidance Document. IT programs and services for managing email in the workplace and processing metadata – June 6, 2024

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